



**SOLE SOURCE JUSTIFICATION (SSJ) UNDER SIMPLIFIED PROCEDURES FOR
CERTAIN COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES
GREATER THAN SAT BUT NOT EXCEEDING \$7.5 MILLION
FAR 13.501**

Sole source procurements should only be used when competitive solicitation procedures are not applicable to the requirement or are impracticable. Please remember, that contracting without promoting competition to the maximum extent practicable cannot be justified due to a lack of advance planning by the requiring activity or concerns related to the amount of funds available.

This document shall not be used for Federal Supply Schedule acquisitions.

1. Identification of the agency and the contracting activity, and specific identification of the document as a *Justification for Other than Full and Open Competition*.

Agency: Drug Enforcement Administration (DEA)

Contracting Activity Processing the Requirement: Office of Acquisition and Relocation Management (FA)

Name of Organization Originating the Requirement: Telecommunications Intercept Support Section (STI)

Identification Number (purchase request/solicitation number): e19 – Pending

2. The nature and/or description of the action being approved (e.g., new award, modification, follow-on to previous procurement, et.al.).

Follow-on to previous procurement.

3. A description of the supplies or services required to meet the agency's needs and estimated value. Maintenance and Support services for a previously procured and installed BAE Mediation platform servicing the DEA Colombia CO JWIP

Total estimated value inclusive of all options: \$

Period of performance or final delivery date: 6/01/2026 – 5/31/2027

4. An identification of the statutory authority permitting other than competition to the maximum extent practicable.

The simplified acquisition threshold is defined in FAR [2.101](#). Per FAR [6.001](#), acquisitions of certain commercial items *exceeding the simplified acquisition threshold* and conducted using simplified acquisition procedures as authorized by FAR [13.501](#) are exempt from the requirement to promote full and open competition. Such acquisitions must promote competition to the maximum extent practicable as required by [41 U.S.C. 1901](#) and FAR [13.104](#). Because this acquisition will be conducted without promoting competition to the maximum extent practicable, this justification is prepared for review and approval in accordance with FAR [13.106-1\(b\)\(2\)](#) and [13.501\(a\)](#).

Check the appropriate box. Only one box may be checked.

☒ [41 U.S.C. 1901](#), [FAR 13.501\(a\)](#) exceeding the simplified acquisition threshold; or

☐ [41 U.S.C. 1903](#), [FAR 13.501\(a\)](#) emergency procurement (up to \$750K within the United States and up to \$1.5Million outside the United States)



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5. A demonstration that the proposed contractor's unique qualifications or the nature of the acquisition requires use of the authority cited.

The BAE Databridge Medication System, installed at the DEA Columbia JWIP in July 2021, is a highly specialized hardware solution tailored specifically for this installation. Due to its customizable nature, BAE possesses exclusive expertise and capability to provide ongoing support and necessary modifications. As the original developer and sole vendor with the requisite technical knowledge and proprietary rights, BAE is uniquely positioned to ensure the systems' optimal performance and integration with existing infrastructure. This exclusivity is essential to maintain system integrity and operational continuity, thereby justifying the need for continued engagement with BAE for support and modifications. In addition, the location for this medication support only allows BAE to perform this service.

6. A description of efforts made to ensure that offers are solicited from as many potential sources as is practicable, including whether a notice was or will be publicized as required by [Subpart 5.2](#) and, if not, which exception under [5.202](#) applies.

BAE is the only vendor able to modify their solution. BAE will not allow other vendors to support its customized solution and guarantee functionality. A special notice was posted to SAM.gov and closed on June 9, 2025, and no additional vendors expressed interest in this requirement.

7. A determination by the contracting officer that the anticipated cost to the Government will be fair and reasonable.

Price will be deemed fair and reasonable based on historical pricing in accordance with FAR 13.106-3(a)(2)(ii).

8. A description of the market research conducted (see [Part 10](#)) and the results or a statement of the reason market research was not conducted.

Members of STIG and FACT attended the ISS World conference in Prague, CZ in 2023 to find potential vendors. The market is thin for this type of requirement and only BAE has the capabilities to perform or as accepted by differing countries. Additionally, a sources sought synopsis was posted to SAM.gov in May 2024 and BAE was confirmed in providing the required services for its' location.

9. Any other facts supporting the use of other than competition to the maximum extent practicable, such as:

- i. Explanation of why technical data packages, specifications, engineering descriptions, statements of work, or purchase descriptions suitable for full and open competition have not been developed or are not available.

None

- ii. When the acquisition is a result in a follow-on acquisition for the continued development or production of a major system or highly specialized equipment, an estimate of the cost to the Government that would be duplicated and how the estimate was derived.

The government would incur a duplication in cost valued at greater than \$3.5M.



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- iii. When the justification is based on an urgent and compelling requirement, cite data, estimated cost, or other rationale as to the extent and nature of the harm to the Government.

N/A

- iv. When the justification is for brand name, explain why the particular brand is the only brand that can satisfy the Government's need. Include in the explanation why other brands do not meet the Government's requirement.

N/A

10. A listing of the sources, if any, that expressed, in writing, an interest in the acquisition.

None

11. A statement of the actions, if any, the agency may take to remove or overcome any barriers that led to the exception to fair opportunity before any subsequent acquisition for the supplies or services is made.

The government will persist in conducting market research to identify any additional viable sources, including authorized resellers, capable of performing this work. Currently, the only potential action the government could consider is to withdraw this requirement and initiate a new competition for a different system from an alternative vendor. However, this course of action is not financially feasible at this time.

Certifications

- ☒ I hereby certify that I have no financial interests of the sort addressed in [subpart D](#) of 5 CFR § 2635 that may give the appearance of a conflict of interest in regards to this Justification.

- ☒ I hereby certify that I have no personal or business relationships or interests of the sort addressed in [5 CFR § 2635.502](#) that may give the appearance of a conflict of interest in regards to this Justification.

Requesting Official Telecommunications Specialist
Signature & Title

Date 03/19/2026

"I hereby certify that the description of the requirement meets the Government's minimum needs and that the technical data and supporting information, which form the basis for this Sole Source Justification are accurate and complete to the best of my knowledge and belief."

- ☒ I hereby certify that I have no financial interests of the sort addressed in [subpart D](#) of 5 CFR § 2635 that may give the appearance of a conflict of interest in regards to this Justification.

- ☒ I hereby certify that I have no personal or business relationships or interests of the sort addressed in [5 CFR § 2635.502](#) that may give the appearance of a conflict of interest in regards to this Justification.

Requesting Office
Technical Point of Contact Telecommunications Specialist

Date 03/19/2026



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Signature & Title

"I hereby certify that this Sole Source Justification is accurate and complete to the best of my knowledge and belief."

Contract Specialist _____ Date _____
Signature

Contracting Officer **DENISE SCOTT** Digitally signed by DENISE SCOTT Date: 2026.04.14 09:13:24 -05'00' _____ Date _____
Signature

"I have reviewed the subject contract action and find it legally sufficient for award."

Chief Counsel Legal _____ Date _____
(if over \$750,000) Signature

Reviews and Approvals

FAC Section Chief _____ Date _____
(if over \$750,000) Signature

Bureau Procurement Chief _____ Date _____
(if over \$750,000 Signature
per [JAR 2806.304](#))

Competition Advocate _____ Date _____
(if over \$750,000) Signature

Head of the Contracting _____ Date _____
Activity (if over \$15M) Signature

DOJ Competition Advocate _____ Date _____



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(if over \$75M)

Signature

Senior Procurement
Executive (if over \$75M)

Signature

Date _____